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* **IN THE HIGH COURT OF DELHI AT NEW DELHI**

Date of decision: 28.01.2025

+ **CRL.L.P. 273/2022 & CRL.M.A. 11299/2022**

STATE NCT OF DELHI	Petitioner
Through: Mr Yudhvir Singh Chauhan, APP for State	
SI Rekha Chauhan, PS-Pandav Nagar	
versus	
MANISH KUMAR	Respondent
Through:	

CORAM:
HON'BLE MR. JUSTICE JASMEET SINGH

: **JASMEET SINGH, J (ORAL)**

1. This is a petition seeking leave to appeal challenging the impugned judgment dated 20.01.2020 passed by the learned Additional Sessions Judge (Fast Track Court), Karkardooma Courts, Delhi in SC No. 967/2016 arising out of FIR No. 442/2014 registered at PS Pandav Nagar, East, North East and Shahdara Districts, Delhi wherein the respondent was acquitted under Sections 376 and 506 of IPC.
2. The complainant/prosecutrix and the respondent have known each other since 2011, having worked together for over 3½ years. Initially, they developed a good friendship. The respondent presented himself as a trustworthy individual, thereby gaining her confidence.
3. During their relationship, the prosecutrix discovered that the respondent lived with a woman named Sangeeta, also known as Sanju, whom he portrayed as his sister, the respondent told the prosecutrix that she

was the wife of the childhood friend and was disowned by the family.

4. The prosecutrix alleges that the respondent has been exploiting her physically and emotionally blackmailing her for these past two years. On 19.03.2012, the respondent allegedly initiated physical relations with her without her consent at his residence located at E-185, Gali No. 5, Pandav Nagar, Delhi. Following this incident, he purportedly continued to engage in physical relations without her consent, claiming that he would marry her once they were both settled and after his younger sister's marriage.

5. Since the respondent did not marry the prosecutrix, a FIR was registered and a chargesheet was filed under Sections 376 and 506 IPC. Thereafter, charges were framed under Sections 376, 376(2) (n) and 506 of IPC.

6. The prosecution examined a total of 12 witnesses while the respondent did not lead any evidence.

7. After recording of the evidence, the learned Trial Court *vide* the impugned judgement dated 20.01.2020, acquitted the respondent under Sections 376, 376(2)(n) and 506 of IPC.

8. Aggrieved by the impugned judgement, the present appeal is filed by the State.

9. Mr. Chauhan, learned APP appearing on behalf of the petitioner opposes the impugned judgement and submits that the evidence of the prosecutrix (PW-2) is clear and cogent and the ingredients of the offences under Sections 376, 376(2)(n) and 506 of IPC are made out.

10. I have heard the learned APP and perused the materials available on record.

11. The operative portion of the impugned judgement, wherein the



learned Trial Court has pointed out the contradictions in the testimonies of PW-2 in para 39, reads as under:

“39. Now reverting back to the case, prosecutrix statement has been recoded thrice. The first statement is her complaint EXPW2/A given to the SHO on the basis of case FIR has been registered. Her second statement is her statement recorded u/s 164 Cr.PC EXPW2/E and her third statement is her evidence recorded in this case. In all her three statement prosecutrix has stated that accused first time established physical relationship forceably on 19.03.2012. There are number of contradiction in her three statements.

(1) In her complaint EXPW2/A she stated that on 19.03.2012 accuse made physical contact with her without her consent. She kept stopping him but he said she should trust him and should not afraid as it is quite normal when two people are in relationship. In her statement u/s 164 Cr. PC she only stated that accused made physical relation forcefully but she did not state that she kept stopping him but he said she should trust him and should not afraid as it is quite normal when two people are in relationship, whereas in her examination in chief she deposed that accused brought juice for her. He switched on television and music system which she did not state in her complaint EXPW2/A.

(2) Further in her evidence she deposed that the accused tried to kiss her. She tried to stop the accused and asked him to drop her at her house. The accused gagged her mouth which she did

not stated in her complaint and statement u/s 164 Cr.PC.

(3) In her evidence in court she stated that on 19.03.12 accused told her that he will marry her as he loves her thus she did not file complaint. But in her complaint EXPW2/A and PW2/E she did not state that accused on that day told that he loves her thus she did not file complaint.

(4) In her evidence in Court she stated that accused told her that not to say anything to anyone whereas in her statement u/s 164 cr.pc she stated that accused told her that they will not tell anything in the office whereas in the complaint Ex PW2/A she did not state that accused asked not to say anything in office as stated in statement u/s 164 or not to say anything to anyone as stated in her evidence.

(5) In her evidence prosecuted stated that accused continued making physical relation with her without her will and consent but in her complaint EXPW2/A stated that accused made first physical contact without her consent whereas in her statement u/s 164 Cr.PC she did not state that after 19.03.2012 accused made physical relation with her.

(6) In her complaint EX PW2/A she stated that accused used to take expensive gifts and money from her but in her statement u/s 164 Cr.PC she did not state said fact.

(7) In her complaint EXPW2/A and in her statement u/s 164 Cr.PC EXPW2/E she stated that during her relationship she came to know that he live with one girl Sangeeta @ Sanju whom he called his sister in front of landlady and public but in

her examination in chief she stated that accused told her that he stays with her real sister Sangita Tiwari and only later on told that Sangita is the wife of his friend.”

12. In the present case, it is pertinent to note that there is no CCTV footage of the incident and there are no other persons who have witnessed the alleged incident. Hence, the testimony of the prosecutrix is to be solely relied upon to bring home the guilt of the respondent.

13. It is true that in the cases of sexual offences, the sole testimony of the prosecutrix can form the basis of the conviction of the accused. However, the Courts have to be extremely careful while examining the sole testimony of the prosecutrix as cautioned in the case of ***Sadashiv Ramrao Hadbe v. State of Maharashtra, (2006) 10 SCC 92***. In this case, the Hon’ble Supreme Court has observed that the accused can be convicted solely on the testimony of the prosecutrix, if the same is inspiring confidence of the Court. Since both the prosecutrix as well as the accused have a right for a fair trial, thus, if the statement of the prosecutrix does not inspire confidence and creates a doubt, the court must look for corroborative evidence, such as, medical evidence or the surrounding circumstances. The relevant para is extracted below:-

“9. It is true that in a rape case the accused could be convicted on the sole testimony of the prosecutrix, if it is capable of inspiring confidence in the mind of the court. If the version given by the prosecutrix is unsupported by any medical evidence or the whole surrounding circumstances are highly improbable and belie the case set up by the prosecutrix, the court shall not act on the solitary evidence of the prosecutrix.

The courts shall be extremely careful in accepting the sole testimony of the prosecutrix when the entire case is improbable and unlikely to happen.”

14. In the present case, there are material contradictions by the prosecutrix in her court evidence and statement recorded under section 164 of CrPC and the initial complaint, thus, the narration of the incident and other allegations made by the prosecutrix have to be examined to determine the question of quality of the testimony of the prosecutrix. The following inconsistencies were noticed by the learned Trial Court:-

- I. Nature of consent:** In her complaint, she mentioned resisting the respondent, but this detail was absent in her statement under Section 164 Cr.PC.
 - II. Details of the incident:** Additional details, such as the respondent bringing juice and switching on the television, were only mentioned in her court evidence.
 - III. Threats and coercion:** The prosecutrix’s claims about the respondent gagging her and making threats varied across her statements.
 - IV. Relationship dynamics:** She stated in court that the respondent claimed to love her, which was not mentioned in her earlier statements.
 - V. Gifts and financial aspects:** Allegations regarding the respondent taking gifts and money were not consistently reported in her statements.
 - VI. Living arrangements:** The details about the respondent’s living situation with another woman changed between her statements.
15. Another aspect which weighs with me is that the prosecutrix at the

time of incident, was a major and a professional, working in a good company. She was not a gullible individual. The date of first incident is of 19.03.2012 and FIR is registered on 07.06.2014 i.e. after a gap of two years and three months, the reasons for delay has been postponement of marriage by the respondent or the respondent wanting to get his sister married first. However, no date, time and month have been given when the sister of the respondent got married and the prosecutrix felt that the respondent was making false promises. The learned Trial Court was correctly of the view that the prosecutrix was a young lady of 25 years old, well educated and working in a reputed company. Hence, the act of establishing physical relationship between the prosecutrix and the respondent appeared to be consensual to the learned Trial Court.

16. Thus, on perusal of the aforementioned contradictions in the statements of the prosecutrix, the prosecutrix has failed to establish and lead clear and cogent evidence regarding the rape on account of false promise of marriage. Therefore, in my considered opinion, the glaring contradictions in the testimony of the prosecutrix raises doubt over the authenticity of the prosecution's case which tilts the balance in favour of the respondent. It would be unsafe to base conviction on an inconsistent solitary testimony.

17. The learned Trial Court was also of the view that no WhatsApp, Facebook messages or chats were produced to show that the respondent had made a false promise of marriage to the respondent for establishing sexual relationship.

18. Therefore, in view of major inconsistencies and contradictions and lack of any corroborating evidence, medical or otherwise, the learned Trial Court has committed no error in acquitting the respondent.



19. For the said reasons, I am of the view that the impugned judgment is well reasoned based upon the evidence and material on record and has correctly concluded the acquittal of the respondent.
20. In this view of the matter, I find no infirmity in the impugned judgement dated 20.01.2020.
21. For the said reasons, the leave to appeal is dismissed.
22. Consequently, the appeal has become infructuous and is disposed of.

JASMEET SINGH, J

JANUARY 28, 2025/sr
(Corrected and released on 11.02.2025)

Click here to check corrigendum, if any